

Court No. - 21

Case :- WRIT - C No. - 8572 of 2023

Petitioner :- Vijay Kumar

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Shri Krishna Mishra, Ajay Mishra

Counsel for Respondent :- C.S.C., Abhishek Srivastava

Hon'ble Manoj Kumar Gupta, J.

Hon'ble Prashant Kumar, J.

Learned counsel for the electricity department prays a week's time to obtain instructions.

List as fresh on 28.3.2023.

Order Date :- 20.3.2023

skv

(Prashant Kumar, J.)

(Manoj Kumar Gupta, J.)

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The petitioner has challenged the recovery order dated 10.10.2022 issued by respondent no.2 for recovery of electricity dues from the petitioner.

Learned counsel for the petitioner submits that the petitioner had paid the entire electricity dues at the time of permanent disconnection and the impugned demand is illegal.

Learned counsel for the respondent-Electricity Department, however, tried to justify the demand by placing before us certain calculation.

Having regard to the facts of the case and the submissions made, we dispose of the instant petition with liberty to the petitioner to file objection against the impugned bill and the consequent demand under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and in which event, it will be decided by concerned Executive Engineer in accordance with law by means of a speaking order.

The impugned recovery will abide by the decision that would be taken by respondent no.2 on the representation of the petitioner.

The petitioner will file objection within two weeks from today and in which event, the recovery will remain stayed for a period of six weeks within which time, the concerned Executive Engineer will decide the objection.

(Prashant Kumar, J.) (Manoj Kumar Gupta, J.)

Order Date :- 28.3.2023

Shivangi